



EMPLOYMENT-BASED • EB-1

EB-1 Visa Guide

Employment-Based First Preference — Priority Workers

Complete guide to EB-1 — covers Extraordinary Ability (EB-1A), Outstanding Researchers (EB-1B), and Multinational Managers (EB-1C). Includes the 10 criteria, evidence guide, premium processing, and filing strategy.

Prepared by ImmigrationIQ

immigrationiq.us | contact@immigrationiq.us

WHAT'S INSIDE THIS KIT:

✓ EB-1A / EB-1B / EB-1C overview ✓ Eligibility for each subcategory ✓ 10 Extraordinary Ability criteria ✓ Sample evidence types ✓ Step-by-step process ✓ Required forms & documents ✓ Premium Processing guide ✓ Fees & timeline ✓ Common mistakes to avoid ✓ Strategy for strong petitions

All USCIS forms: uscis.gov/forms | Tools: immigrationiq.us

1. EB-1 Categories Overview

EB-1 is the highest-priority employment-based immigrant visa category. It does NOT require a PERM Labor Certification, making it significantly faster than EB-2 or EB-3. EB-1 has three subcategories:

EB-1A (Extraordinary)	EB-1B (Outstanding Researcher)	EB-1C (Multinational Manager)
Self-petition, no employer needed	Employer files; permanent research/teaching position	Multinational employer transferring you
Top of field — sustained acclaim	International recognition in academic field	Manager/executive abroad and in U.S.
10 criteria, must meet 3 OR major one-time achievement	Meet 2 of 6 criteria	1 yr abroad in past 3 yrs as exec/manager
Open to anyone in any field	Sciences, arts, education, business, athletics	L-1 transferees often qualify
Form I-140 alone	Form I-140 with employer	Form I-140 with U.S. employer

■ **EB-1 is usually current for most countries on the Visa Bulletin (no waiting for priority date). Heavy backlog applies to EB-1 applicants from India and China — check the latest Visa Bulletin.**

2. EB-1A: Extraordinary Ability — Eligibility

EB-1A applicants must demonstrate sustained national or international acclaim. You can self-petition (no employer needed) and your work in the U.S. must continue in your area of expertise.

Two Pathways to Approval

- **PATHWAY 1** — Major one-time achievement: e.g., Nobel Prize, Olympic Gold Medal, Academy Award, or similar internationally recognized award.
- **PATHWAY 2** — Meet at least 3 of the 10 regulatory criteria (most common path).

3. The 10 EB-1A Criteria

Meet at least 3 of the following with strong evidence:

- 1. Lesser nationally/internationally recognized prizes or awards:** Awards for excellence in your field — not first-place finishes only. Include certificates, public announcements, and details on award significance/competitiveness.
- 2. Membership in associations requiring outstanding achievement:** Memberships judged by recognized experts. Provide membership criteria, your acceptance letter, and the reviewers' credentials.
- 3. Published material about you in professional/major media:** Articles ABOUT you (not by you) in major trade publications or general press. Include translations and circulation data.

- 4. Service as a judge of others' work:** Peer reviewer for journals, panel judge for awards, dissertation committee, grant reviewer. Include invitation letters and review records.
- 5. Original contributions of major significance:** Inventions, methods, treatments, theories, or other innovations widely adopted. Provide citation analysis, expert letters, patents, adoption proof.
- 6. Authorship of scholarly articles:** Peer-reviewed publications. Provide citation counts (Google Scholar, Web of Science), journal impact factors, and h-index.
- 7. Display of work at artistic exhibitions/showcases:** For artists. Major galleries, museums, festivals. Include catalogs, reviews, attendance figures.
- 8. Performed in a leading/critical role for distinguished organization:** Senior position at a respected company or institution. Define 'leading' role and the org's reputation.
- 9. High salary or significantly high remuneration:** Salary far above average for your field/location. Include comparable salary data (BLS, surveys).
- 10. Commercial success in performing arts:** Box office receipts, record sales, streaming/download metrics, industry awards.

TIP: Quality beats quantity. Three meticulously documented criteria with strong expert testimony beats checking off 6 criteria with weak evidence. Each criterion should include: (1) the basic facts, (2) why it matters in your field, (3) corroborating evidence, (4) expert opinion letters.

4. EB-1B & EB-1C — Eligibility

EB-1B: Outstanding Professors and Researchers

- International recognition for outstanding achievements in your academic field
- At least 3 years of experience in teaching or research
- Job offer for a permanent research position OR a tenured/tenure-track teaching position
- Meet at least 2 of 6 criteria (similar to EB-1A but research-specific)

EB-1C: Multinational Manager or Executive

- Employed for at least 1 of the past 3 years abroad as a manager or executive by a related entity
- Coming to the U.S. to work as manager or executive for the same/related employer
- Both U.S. and foreign companies must be 'qualifying organizations' (parent, branch, subsidiary, affiliate)
- Often filed by L-1A intracompany transferees seeking permanent residence

5. Step-by-Step Process

- 1. Build Your Evidence Portfolio:** Gather extensive documentation on each claimed criterion. Plan 2-3 months for compilation. Get expert letters early.
- 2. Choose Filing Strategy:** Decide between consular processing (abroad) or adjustment of status (in U.S.) based on your current status.
- 3. File Form I-140:** Immigrant Petition for Alien Worker. EB-1A: self-petitioned. EB-1B/1C: filed by U.S. employer. Filing fee: \$715.

- 4. Optional: Premium Processing:** Pay \$2,805 for guaranteed 15-business-day USCIS response (approval, RFE, or denial).
- 5. Receive I-140 Approval:** Approval establishes your priority date and eligibility for green card.
- 6. Wait for Visa Number (if backlogged):** Most countries: current. India/China: check Visa Bulletin for priority date.
- 7. File I-485 (in U.S.) or DS-260 (consular):** I-485 fee: \$1,440. DS-260 fee: \$325. Concurrent I-140 + I-485 filing allowed if priority date is current.
- 8. Receive Green Card:** 10-year permanent green card. No conditions for EB-1 (no I-751 needed).

6. Required Forms & Fees

Form / Item	Cost / Time
I-140 (Immigrant Petition)	\$715
I-140 Premium Processing (optional)	\$2,805 (15 business day response)
I-485 (Adjustment of Status)	\$1,440
I-485 Premium Processing	Not available for I-485
I-765 work permit (with I-485)	\$0 (included)
I-131 Advance Parole (with I-485)	\$0 (included)
DS-260 (consular processing)	\$325
I-140 standard processing	6-12 months
I-140 with Premium Processing	15 business days
I-485 timeline	8-14 months
Visa Bulletin (current)	Most countries: Current; India/China: significant wait

7. Document Checklist

Personal & Identity

- Valid passport (biographic page)
- Birth certificate with certified English translation
- Marriage/divorce certificates (if applicable)
- Most recent CV / resume (detailed, with publications and metrics)
- Academic transcripts and diplomas

Evidence Portfolio (varies by criteria)

- Awards: certificates, official announcements, eligibility criteria
- Memberships: acceptance letters, criteria documents, organization profile
- Press: original articles + certified translations + circulation/readership data
- Citations: Google Scholar, Web of Science, Scopus reports
- Publications: copies of journal articles + impact factor documentation
- Patents: filed/issued patent docs, commercial use evidence
- Salary: pay stubs, contracts, comparable industry data (BLS, surveys)
- Expert opinion letters: 5-10 from independent experts in your field

Expert Opinion Letters (CRITICAL)

- 5-10 letters from recognized experts NOT closely tied to you
- Each letter should: identify the writer's credentials, describe how they know your work, evaluate your contributions, place you in context of the field
- Mix of independent experts and former collaborators is best (more weight to independents)
- Avoid form letters — each should be substantive, specific, and personalized

8. Common Mistakes to Avoid

- Submitting weak expert letters that lack specifics about your contributions
 - Failing to demonstrate sustained acclaim — one-off achievements aren't enough
 - Inadequate citation/impact analysis for academic petitions
 - Generic 'I'm great' letters with no objective evidence
 - Missing comparison data (e.g., your salary vs industry benchmarks)
 - Poor organization — make it easy for officers to find each criterion
 - Confusing the criteria — be clear which evidence supports which criterion
 - Ignoring opposing evidence — address potential concerns proactively
- **RFEs (Requests for Evidence) are common. A well-prepared initial petition with comprehensive evidence reduces RFE risk dramatically. Plan for 6-12 months of preparation.**

9. Strategy for Strong Petitions

- Define your specific 'field' precisely — narrower is often easier to prove acclaim
- Build your case story: how does each piece of evidence prove sustained acclaim at the top of your field?
- Use Final Merits Determination (Kazarian framework): meet 3 criteria + persuade USCIS holistically
- Maintain documentation evergreen — keep updating as you publish/win
- Consider Premium Processing for time-sensitive cases (job start, visa expiration)
- Hire a qualified immigration attorney experienced specifically in EB-1 — generalists may miss nuances

TIP: Even if you self-petition, an attorney consultation can dramatically increase approval odds. Many top EB-1 firms offer free initial consultations to assess your case.

YOUR IMMIGRATIONIQ TOOLKIT

→ AI Chat Assistant	immigrationiq.us/chat
→ Case Status Tracker	immigrationiq.us/case-tracker
→ Visa Bulletin Dashboard	immigrationiq.us/visa-bulletin
→ USCIS Fee Calculator	immigrationiq.us/fee-calculator
→ Find Immigration Lawyers	immigrationiq.us/lawyers
→ Free Legal Aid Resources	immigrationiq.us/lawyers (Free Legal Aid tab)



ImmigrationIQ — immigrationiq.us

For informational purposes only. NOT legal advice. Laws change frequently. Verify at uscis.gov. Consult a licensed immigration attorney for your specific situation.